

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1594

By: George

AS INTRODUCED

An Act relating to crimes and punishments; amending 21 O.S. 2021, Section 644, as last amended by Section 6, Chapter 452, O.S.L. 2024 (21 O.S. Supp. 2024, Section 644), which relates to assault and battery; clarifying scope of certain unlawful act; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 21 O.S. 2021, Section 644, as last amended by Section 6, Chapter 452, O.S.L. 2024 (21 O.S. Supp. 2024, Section 644), is amended to read as follows:

Section 644. A. Assault shall be punishable by imprisonment in a county jail not exceeding thirty (30) days, or by a fine of not more than Five Hundred Dollars (\$500.00), or by both such fine and imprisonment.

B. Assault and battery shall be punishable by imprisonment in a county jail not exceeding ninety (90) days, or by a fine of not more than One Thousand Dollars (\$1,000.00), or by both such fine and imprisonment.

1 C. Any person who commits any assault and battery against a  
2 current or former intimate partner or a family or household member  
3 as defined by Section 60.1 of Title 22 of the Oklahoma Statutes  
4 shall be guilty of domestic abuse. Upon conviction, the defendant  
5 shall be punished by imprisonment in the county jail for not more  
6 than one (1) year, or by a fine not exceeding Five Thousand Dollars  
7 (\$5,000.00), or by both such fine and imprisonment. Upon conviction  
8 for a second or subsequent offense, the person shall be punished by  
9 imprisonment in the custody of the Department of Corrections for not  
10 more than four (4) years, or by a fine not exceeding Five Thousand  
11 Dollars (\$5,000.00), or by both such fine and imprisonment. The  
12 provisions of Section 51.1 of this title shall apply to any second  
13 or subsequent offense.

14 D. 1. Any person who, with intent to do bodily harm and  
15 without justifiable or excusable cause, commits any assault,  
16 battery, or assault and battery upon an intimate partner or a family  
17 or household member as defined by Section 60.1 of Title 22 of the  
18 Oklahoma Statutes with any sharp or dangerous weapon, upon  
19 conviction, is guilty of domestic assault or domestic assault and  
20 battery with a dangerous weapon which shall be a felony and  
21 punishable by imprisonment in the custody of the Department of  
22 Corrections not exceeding ten (10) years, or by imprisonment in a  
23 county jail not exceeding one (1) year. The provisions of Section  
24

1 51.1 of this title shall apply to any second or subsequent  
2 conviction for a violation of this paragraph.

3 2. Any person who, without such cause, shoots an intimate  
4 partner or a family or household member as defined by Section 60.1  
5 of Title 22 of the Oklahoma Statutes by means of any kind of  
6 firearm, deadly weapon, air gun, conductive energy weapon, or any  
7 other means whatever, that is likely to produce death shall, upon  
8 conviction, be guilty of domestic assault and battery with a deadly  
9 weapon which shall be a felony punishable by imprisonment in the  
10 custody of the Department of Corrections not exceeding life. The  
11 provisions of Section 51.1 of this title shall apply to any second  
12 or subsequent conviction for a violation of this paragraph.

13 E. 1. Any person convicted of domestic abuse committed against  
14 a pregnant woman with knowledge of the pregnancy shall be guilty of  
15 a felony, punishable by imprisonment in the custody of the  
16 Department of Corrections for not more than five (5) years.

17 2. Any person convicted of a second or subsequent offense of  
18 domestic abuse against a pregnant woman with knowledge of the  
19 pregnancy shall be guilty of a felony, punishable by imprisonment in  
20 the custody of the Department of Corrections for not less than ten  
21 (10) years.

22 3. Any person convicted of domestic abuse committed against a  
23 pregnant woman with knowledge of the pregnancy and a miscarriage  
24 occurs or injury to the unborn child occurs shall be guilty of a

1 felony, punishable by imprisonment in the custody of the Department  
2 of Corrections for not less than twenty (20) years.

3 F. Any person convicted of domestic abuse as defined in  
4 subsection C of this section that results in great bodily injury to  
5 the victim shall be guilty of a felony and punished by imprisonment  
6 in the custody of the Department of Corrections for not more than  
7 ten (10) years, or by imprisonment in the county jail for not more  
8 than one (1) year. The provisions of Section 51.1 of this title  
9 shall apply to any second or subsequent conviction of a violation of  
10 this subsection.

11 G. Any person convicted of domestic abuse as defined in  
12 subsection C of this section that was committed in the presence of a  
13 child shall be punished by imprisonment in the county jail for not  
14 less than six (6) months nor more than one (1) year, or by a fine  
15 not exceeding Five Thousand Dollars (\$5,000.00), or by both such  
16 fine and imprisonment. Any person convicted of a second or  
17 subsequent domestic abuse as defined in subsection C of this section  
18 that was committed in the presence of a child shall be punished by  
19 imprisonment in the custody of the Department of Corrections for not  
20 less than one (1) year nor more than five (5) years, or by a fine  
21 not exceeding Seven Thousand Dollars (\$7,000.00), or by both such  
22 fine and imprisonment. The provisions of Section 51.1 of this title  
23 shall apply to any second or subsequent offense. For every  
24 conviction of a domestic abuse crime in violation of any provision

1 of this section committed against an intimate partner or a family or  
2 household member as defined by Section 60.1 of Title 22 of the  
3 Oklahoma Statutes, the court shall:

4 1. Specifically order as a condition of a suspended or deferred  
5 sentence that a defendant participate in counseling or undergo  
6 treatment to bring about the cessation of domestic abuse as  
7 specified in paragraph 2 of this subsection;

8 2. a. The court shall require the defendant to complete an  
9 assessment and follow the recommendations of a  
10 batterers' intervention program certified by the  
11 Attorney General. If the defendant is ordered to  
12 participate in a batterers' intervention program, the  
13 order shall require the defendant to attend the  
14 program for a minimum of fifty-two (52) weeks,  
15 complete the program, and be evaluated before and  
16 after attendance of the program by program staff.  
17 Three unexcused absences in succession or seven  
18 unexcused absences in a period of fifty-two (52) weeks  
19 from any court-ordered batterers' intervention program  
20 shall be prima facie evidence of the violation of the  
21 conditions of probation for the district attorney to  
22 seek acceleration or revocation of any probation  
23 entered by the court.  
24

1           b.    A program for anger management, couples counseling, or  
2               family and marital counseling shall not solely qualify  
3               for the counseling or treatment requirement for  
4               domestic abuse pursuant to this subsection. The  
5               counseling may be ordered in addition to counseling  
6               specifically for the treatment of domestic abuse or  
7               per evaluation as set forth below. If, after  
8               sufficient evaluation and attendance at required  
9               counseling sessions, the domestic violence treatment  
10              program or licensed professional determines that the  
11              defendant does not evaluate as a perpetrator of  
12              domestic violence or does evaluate as a perpetrator of  
13              domestic violence and should complete other programs  
14              of treatment simultaneously or prior to domestic  
15              violence treatment, including but not limited to  
16              programs related to the mental health, apparent  
17              substance or alcohol abuse or inability or refusal to  
18              manage anger, the defendant shall be ordered to  
19              complete the counseling as per the recommendations of  
20              the domestic violence treatment program or licensed  
21              professional;

22        3.    a.    The court shall set a review hearing no more than one  
23               hundred twenty (120) days after the defendant is  
24               ordered to participate in a domestic abuse counseling

1 program or undergo treatment for domestic abuse to  
2 assure the attendance and compliance of the defendant  
3 with the provisions of this subsection and the  
4 domestic abuse counseling or treatment requirements.  
5 The court may suspend sentencing of the defendant  
6 until the defendant has presented proof to the court  
7 of enrollment in a program of treatment for domestic  
8 abuse by an individual licensed practitioner or a  
9 domestic abuse treatment program certified by the  
10 Attorney General and attendance at weekly sessions of  
11 such program. Such proof shall be presented to the  
12 court by the defendant no later than one hundred  
13 twenty (120) days after the defendant is ordered to  
14 such counseling or treatment. At such time, the court  
15 may complete sentencing, beginning the period of the  
16 sentence from the date that proof of enrollment is  
17 presented to the court, and schedule reviews as  
18 required by subparagraphs a and b of this paragraph  
19 and paragraphs 4 and 5 of this subsection. Three  
20 unexcused absences in succession or seven unexcused  
21 absences in a period of fifty-two (52) weeks from any  
22 court-ordered domestic abuse counseling or treatment  
23 program shall be prima facie evidence of the violation  
24 of the conditions of probation for the district

1 attorney to seek acceleration or revocation of any  
2 probation entered by the court.

3 b. The court shall set a second review hearing after the  
4 completion of the counseling or treatment to assure  
5 the attendance and compliance of the defendant with  
6 the provisions of this subsection and the domestic  
7 abuse counseling or treatment requirements. The court  
8 shall retain continuing jurisdiction over the  
9 defendant during the course of ordered counseling  
10 through the final review hearing;

11 4. The court may set subsequent or other review hearings as the  
12 court determines necessary to assure the defendant attends and fully  
13 complies with the provisions of this subsection and the domestic  
14 abuse counseling or treatment requirements;

15 5. At any review hearing, if the defendant is not  
16 satisfactorily attending individual counseling or a domestic abuse  
17 counseling or treatment program or is not in compliance with any  
18 domestic abuse counseling or treatment requirements, the court may  
19 order the defendant to further or continue counseling, treatment, or  
20 other necessary services. The court may revoke all or any part of a  
21 suspended sentence, deferred sentence, or probation pursuant to  
22 Section 991b of Title 22 of the Oklahoma Statutes and subject the  
23 defendant to any or all remaining portions of the original sentence;  
24



1       6. At the first review hearing, the court shall require the  
2 defendant to appear in court. Thereafter, for any subsequent review  
3 hearings, the court may accept a report on the progress of the  
4 defendant from individual counseling, domestic abuse counseling, or  
5 the treatment program. There shall be no requirement for the victim  
6 to attend review hearings; and

7       7. If funding is available, a referee may be appointed and  
8 assigned by the presiding judge of the district court to hear  
9 designated cases set for review under this subsection. Reasonable  
10 compensation for the referees shall be fixed by the presiding judge.  
11 The referee shall meet the requirements and perform all duties in  
12 the same manner and procedure as set forth in Sections 1-8-103 and  
13 2-2-702 of Title 10A of the Oklahoma Statutes pertaining to referees  
14 appointed in juvenile proceedings.

15       The defendant may be required to pay all or part of the cost of  
16 the counseling or treatment, in the discretion of the court.

17       H. As used in subsection G of this section, "in the presence of  
18 a child" means in the physical presence of a child; or having  
19 knowledge that a child is present and may see or hear an act of  
20 domestic violence. For the purposes of subsections C and G of this  
21 section, "child" may be any child whether or not related to the  
22 victim or the defendant.

23       I. For the purposes of subsections C and G of this section, any  
24 conviction for assault and battery against an intimate partner or a

1 family or household member as defined by Section 60.1 of Title 22 of  
2 the Oklahoma Statutes shall constitute a sufficient basis for a  
3 felony charge:

4 1. If that conviction is rendered in any state, county or  
5 parish court of record of this or any other state; or

6 2. If that conviction is rendered in any municipal court of  
7 record of this or any other state for which any jail time was  
8 served; provided, no conviction in a municipal court of record  
9 entered prior to November 1, 1997, shall constitute a prior  
10 conviction for purposes of a felony charge.

11 J. Any person who commits any assault and battery by  
12 strangulation or attempted strangulation against an intimate partner  
13 or a family or household member as defined by Section 60.1 of Title  
14 22 of the Oklahoma Statutes shall, upon conviction, be guilty of  
15 domestic abuse by strangulation and shall be punished by  
16 imprisonment in the custody of the Department of Corrections for a  
17 period of not less than one (1) year nor more than three (3) years,  
18 or by a fine of not more than Three Thousand Dollars (\$3,000.00), or  
19 by both such fine and imprisonment. Upon a second or subsequent  
20 conviction for a violation of this section, the defendant shall be  
21 punished by imprisonment in the custody of the Department of  
22 Corrections for a period of not less than three (3) years nor more  
23 than ten (10) years, or by a fine of not more than Twenty Thousand  
24 Dollars (\$20,000.00), or by both such fine and imprisonment. The

1 provisions of Section 51.1 of this title shall apply to any second  
2 or subsequent conviction of a violation of this subsection. As used  
3 in this subsection, "strangulation" means any form of asphyxia;  
4 including, but not limited to, asphyxia characterized by closure of  
5 the blood vessels or air passages of the neck as a result of  
6 external pressure on the neck or the closure of the nostrils or  
7 mouth as a result of external pressure on the head.

8 K. Any district court of this state and any judge thereof shall  
9 be immune from any liability or prosecution for issuing an order  
10 that requires a defendant to:

11 1. Attend a treatment program for domestic abusers certified by  
12 the Attorney General;

13 2. Attend counseling or treatment services ordered as part of  
14 any suspended or deferred sentence or probation; and

15 3. Attend, complete, and be evaluated before and after  
16 attendance by a treatment program for domestic abusers, certified by  
17 the Attorney General.

18 L. There shall be no charge of fees or costs to any victim of  
19 domestic violence, stalking, or sexual assault in connection with  
20 the prosecution of a domestic violence, stalking, or sexual assault  
21 offense in this state.

22 M. In the course of prosecuting any charge of domestic abuse,  
23 stalking, harassment, rape, or violation of a protective order, the  
24 prosecutor shall provide the court, prior to sentencing or any plea

1 agreement, a local history and any other available history of past  
2 convictions of the defendant within the last ten (10) years relating  
3 to domestic abuse, stalking, harassment, rape, violation of a  
4 protective order, or any other violent misdemeanor or felony  
5 convictions.

6 N. Any plea of guilty or finding of guilt for a violation of  
7 subsection C, F, G, I or J of this section shall constitute a  
8 conviction of the offense for the purpose of this act or any other  
9 criminal statute under which the existence of a prior conviction is  
10 relevant for a period of ten (10) years following the completion of  
11 any court imposed probationary term; provided, the person has not,  
12 in the meantime, been convicted of a misdemeanor involving moral  
13 turpitude or a felony.

14 O. For purposes of subsection F of this section, "great bodily  
15 injury" means bone fracture, protracted and obvious disfigurement,  
16 protracted loss or impairment of the function of a body part, organ  
17 or mental faculty, or substantial risk of death.

18 P. Any pleas of guilty or nolo contendere or finding of guilt  
19 to a violation of any provision of this section shall constitute a  
20 conviction of the offense for the purpose of any subsection of this  
21 section under which the existence of a prior conviction is relevant  
22 for a period of ten (10) years following the completion of any  
23 sentence or court imposed probationary term.

SECTION 2. This act shall become effective November 1, 2025.

60-1-10031      GRS      12/16/24